

1.

CASE #	CASE NAME	HEARING NAME
CVMV2510814	CHILES vs AFRICAN AMERICAN HEALTH COALITION	MOTION TO VACATE VOID ORDER AND CLERICAL ERROR

Tentative Ruling: The Court DENIES the Motion to Vacate.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501128	CARRE vs COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: The Court **GRANTS** Defendant County's motion for summary judgment; trail immunity applies and Plaintiff fails to meet his burden to present a triable issue of material fact. Governmental immunity from liability is jurisdictional rather than an affirmative defense (*Richardson-Tunnel v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061); as such, the Court does not reach the merits of whether there existed an open-and-obvious dangerous condition.

County's Evidentiary Objections

County objects to various portions of the declarations of Narine Sulahian ("Sulahian") and Plaintiff. County objects to the entirety of the declaration of Tate Kubose, Ph.D. ("Kubose"). The Court rules as follows:

- Sulahian's Declaration: objection #1 - overruled.
- Plaintiff Declaration: objection #1-2 (subsequent remedial measure, relevance) and #3 (speculation) - sustained. Objection #4 - overruled.
- Kubose's Declaration. Plaintiff offers Kubose's declaration as expert testimony. (Evid. Code, §§ 720, 802 see *Kelly v. Trunk* (1998) 66 Cal.App.4th 519, 524; *Towns v. Davidson* (2007) 147 Cal.App.4th 461, 472.) Courts will exclude expert opinions based on invalid assumptions, such as on facts without evidentiary support. (*Sanchez v. Kern Emergency Med. Transp. Corp.* (2017) 8 Cal.App.5th 146, 155.) Here, Kubose's declaration provides his credentials, lists the records he reviewed, and then provides conclusions without the bases for such. (See Kubose Decl., ¶6.) As such, the Court SUSTAINS County's objections #1-7